

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MATHEW SOLOMON

Plaintiff,

-against-

The City Of New York, Edward A. Caban Individually
and as a Police Commissioner of The City of New York,
Captain Albert Rodriguez, Commanding Officer 28th Pct.,
New York City Police Department, Officers John and Jane
Doe 1-20.

Defendants.
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FILE NO.

INDEX

COMPLAINT

The plaintiff, complaining of the defendants, by his attorney, David Blum of
David Blum & Associates, respectfully shows to this Court and alleges:

PARTIES

1. That the plaintiff is a citizen of the United States and he is a resident of the City of New York, County of State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant City of New York, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant City of New York, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York, including all the police officers thereof.

4. Upon information and belief, that at all times hereinafter mentioned, and on or prior to the day of February 28, 2023 Captain Albert Rodriguez, Commanding Officer of the 28th Pct. was employed by the defendant, the City of New York, as a police officer.

5. Upon information and belief, that at all times hereinafter mentioned Officers John and Jane Doe 1-20 were employed by the defendant, the City of New York, as police officers.

6. Upon information and belief, that at all times hereinafter mentioned, the defendant Edward A. Caban was and is presently acting as police commissioner of the City of New York and an employee of the City of New York.

7. Upon information and belief, that at all times hereinafter mentioned, and on or about the 28th day of February 2024, defendant, Edward A. Caban Commissioner of the Police Department of the City of New York, was hired by the City of New York as Police Commissioner of the Police Department of the City of New York and designated as head of the police officers for the City of New York.

8. This action arises under, inter alia, the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

9. Each and all of the acts of the defendants, alleged herein were done by the defendants, their agents, servants and employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and under the authority of their office as police officers of said state, county and city.

10. That Notice of the Plaintiffs' Claim and Notice of Intention to Sue for Damages for false arrest and imprisonment, assault and battery, violation of civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller of the defendant City of New York on or about the 31st day of March 2023 and given a file number of 2023PI010368.

11. That a 50-H hearing has been held pursuant to Sec. 50-H of the General Municipal Law on the 20th day of September 2023.

12. That more than thirty days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

13. That this action is commenced within one year and ninety days after the cause of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

14. The plaintiff repeats, reiterates and reallege each and every allegation contained in paragraphs marked 1 through 13 with the same force and effect as if more fully set forth herein.

15. That on or about the 28th day of February 2023 at or about 4:00PM of that day, inside the premises of, and on the public sidewalk in front of, contiguous to and adjacent to premises known and designated as 304 Lenox Avenue, in the County of New York, City and State of New York, the defendants, their agents, servants and employees wrongfully and falsely arrested, imprisoned and detained plaintiff, without any right or grounds therefor.

16. That on or about the 28th day of February 2024 the defendants failed and refused to inform the plaintiff Mathew Solomon of the reason for which he was being arrested.

17. That the said arrest and imprisonment was caused by the defendants, their agents, servants and employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff, Mathew Solomon was in fact guilty of any crimes.

18. That on the aforesaid date, time and place, the plaintiff, who was lawfully and properly upon the premises thereat was viciously struck by defendants Police officers John and Jane Doe 1-20 and was and violently precipitated to the ground thereat, and thereafter, into the back of a police vehicle.

19. While the plaintiff was so engaged, as aforesaid, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wish, without probable cause, arrested and imprisoned the plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of and compelled him to go with the said defendant police officers to 28th Precinct located on 2271-89 Frederick Douglass Blvd, New York, NY 10027 and then to the Hospital where he was hand cuffed to a gurney for several hours.

20. That the defendants, their agents, servants and employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and employees, had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

21. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

22. That the defendants, their agents, servants and employees, as set forth aforesaid on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement, and, that the confinement was not otherwise privileged.

23. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, and he was caused to suffer much pain in both mind and body opportunities.

24. That by reason of the aforesaid, the plaintiff has been damaged and demands judgement against the defendants therefor.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as is more fully and at length and at length set forth herein.

26. That on or about the 28th day of February 2023 at or about 4:00PM of that day, inside the premises of and on the public sidewalk, in front of, contiguous to and adjacent to premises known and designated as 304 Lenox Avenue, in the County of New York, City and

State of New York, the defendants, their agents, servants and employees wrongfully and falsely arrested, imprisoned and detained plaintiff, without any right or grounds therefor.

27. That the defendants their agents servants and employees without just cause or provocation and with great force and violence, violently seized, assaulted and laid hold of the plaintiff, including but not limited to intentionally, forcefully and fiercely striking plaintiff as he was protecting himself from the onslaught of the defendants, and caused him to be violently precipitated to the ground and violently thrown into the back of a police vehicle, and causing handcuffs to be tightly placed upon the wrists of the plaintiff.

28. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted and battered plaintiff, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally, did a violent and/or menacing act which threatened such contact to the plaintiff, and that act(s) caused apprehension of such contact in the plaintiff, and defendants, in a hostile and/or offensive manner touched and beat the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery in and about his head, neck, back, body and limbs.

29. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority, and without probable or reasonable cause, the plaintiff suffered great bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering, and that he was otherwise damaged.

30. That by reason of the aforesaid, the plaintiff has been damaged and demands judgment against the defendants therefor.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

31. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully and at length set forth herein.

32. That the defendant, The City of New York, was careless and reckless in hiring and retaining Captain Albert Rodriguez, Commanding Officer 28th Pct., New York City Police Department, and Officers John and Jane Doe 1-20 as and for its employees, the above named in that at the said defendants lacked the experience, department and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as an employee of the aforementioned defendant; in that the defendant, the City of New York failed to investigate the above named defendants backgrounds and in that they hired and retained as employees of their police department individuals who lacked the maturity, sensibility and intelligence to be employed when they were hired in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.

33. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

34. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,

and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the action of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

35. That by reason of the aforesaid, the plaintiff has been damaged and demands judgment against the defendants there for.

**AS AND FOR A FOURTH CAUSE OF ACTION OF
BEHALF OF PLAINTIFF**

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully and at length set forth herein.

37. That the defendant's, their agents servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named defendants, in that they failed to train their employees in the proper use of weapons and firearms; in the proper manner in which to handle and control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonably, prudent police officers; failed to give them proper instruction as to their deportment, behavior and conduct as representatives of their employers; and, in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.

38. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely

by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.

39. That by reason of the aforesaid, the plaintiff was injured in mind and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

40. That by reason of the aforesaid, the plaintiff has been damaged and demands judgment against the defendants there for.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth herein.

42. That the defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly, recklessly and negligently arrested the plaintiff without making a proper investigation, in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained the said that the defendant, their agents, servants and employees negligently, carelessly and recklessly without provocation and

with great force and violence and while negligently struck the plaintiff; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servant and employees were otherwise careless, reckless and negligent.

43. That the aforesaid occurrence, to wit: the false arrest and imprisonment, assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and employees without any negligence on the part of the plaintiff.

44. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation and will, upon information and belief, be so incapacitated in the future, and he has expended and incurred diverse sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendant, their agents, servants and employees; including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

45. That by reason of the aforesaid, the plaintiff has been damaged and demands judgment against the defendants there for.

WHEREFORE, plaintiff demands judgment against the defendants in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS on the First Cause of Action; FIVE MILLION (\$5,000,000.00) DOLLARS on the Second Cause of Action; FIVE MILLION (\$5,000,000.00) DOLLARS on the Third Cause of Action; FIVE MILLION (\$5,000,000.00) DOLLARS on the

Fourth Cause of Action; and FIVE MILLION (5,000,000.00) DOLLARS on the Fifth Cause of Action; and further demands his legal fees and the costs and disbursements of this action.

Dated: New York, New York
February 12, 2024



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